

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF	)	
THE LICENSE TO PRACTICE AS	)	DIA NO. 92DPHPS-1
A PSYCHOLOGIST OF:	)	
	)	INFORMAL SETTLEMENT
EUGENE GAURON,	)	
Lic. No. 262,	)	
Respondent.	)	

COMES NOW the Iowa Board of Psychological Examiners (the Board) and Eugene Gauron (Respondent) and, pursuant to Iowa Code §§ 17A.10 and 258A.3(4) (1991), enter into the following Informal Settlement of the contested case currently on file:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on January 13, 1978, and holds license number 262. Respondent's license is current until June 30, 1992.
2. A Complaint and Statement of Charges was filed against the Respondent on May 15, 1992, simultaneously with the filing of this Informal Settlement.
3. The Board has jurisdiction of the parties and the subject matter.
4. Respondent agrees that he shall satisfy the initial two hour requirement of child abuse identification and reporting education on or before September 1, 1992. Respondent shall provide verification to the Board of the satisfaction of that education. Further, Respondent agrees that he shall maintain continuing education in child abuse reporting and education as required by Iowa Code § 232.69 (1991) so long as he has the potential for counseling or treating a child in the course of his

practice. Respondent agrees that the Board may require periodic verification of compliance with this requirement.

5. Respondent agrees that he shall maintain adequate, current, and pertinent records on all patients. Respondent agrees that the Board may require periodic verification of compliance with this requirement.

6. Respondent agrees that he shall, by ^{December 31} ~~June 30~~ ^{dB}, 1993, obtain the equivalent of three graduate level semester hours of credit for course work directly related to ethical concerns in the practice of psychology, which shall be submitted for pre-approval to the Board.

7. Respondent accepts the attached letter of reprimand.

8. This Informal Settlement is subject to approval of the Board. If the Board fails to approve this Informal Settlement, it shall be of no force or effect to either party.

9. This Informal Settlement is voluntarily submitted by the Respondent to the Board for its consideration.

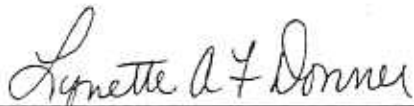
Eugene Gauron
EUGENE GAURON

Signed and sworn to before me this 16th day of March,
1992.

Dennis Kline #200207
NOTARY PUBLIC IN AND FOR THE
STATE OF IOWA

My commission expires 7-1-95

Approved as to form:



LYNETTE A.F. DONNER
Assistant Attorney General
2nd Floor, Hoover Building
Des Moines, Iowa 50319

ATTORNEY FOR THE STATE INTEREST

10. This Informal Settlement is accepted by the Iowa Board
of Psychology Examiners on this 15th day of MAY,
1992.



Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners



TERRY E. BRANSTAD, GOVERNOR

DEPARTMENT OF PUBLIC HEALTH
CHRISTOPHER G. ATCHISON, DIRECTOR

May 15, 1992

Eugene Gauron, Ph.D.
301 7th Ave. No.
Iowa City, Ia 52245

Dear Dr. Gauron:

On May 15, 1992, the Iowa Board of Psychology Examiners filed a Statement of Charges against you alleging that you violated certain provisions of the Iowa Code and the Iowa Administrative Code. Specifically, it was alleged that you failed to complete the required two hours of training relating to the identification and reporting of child abuse, and that you have failed to maintain adequate, current and pertinent records on all patients.

You are reminded that it is your responsibility as a psychologist to avoid any action that would violate or diminish the legal and civil rights of clients or others who may be affected by your actions, and to remain abreast of relevant federal, state, local and agency regulations and professional standards of practice concerning the conduct of your practice.

On May 15, 1992, you entered into an Informal Settlement with the Board as a disposition to the allegations. One of the terms of the Informal Settlement was that you receive a public letter of reprimand.

You are hereby admonished that violation of these standards is a violation of the provisions of the Iowa Code and the Iowa Administrative Code. Violations of this nature could result in disciplinary action being taken against you. Sanctions imposed by the Board could include revocation of license.

Please take notice of this reprimand and in the future govern yourself accordingly.

Sincerely,

Carl S. Davis, Ph.D.
Chairperson
Board of Psychology Examiners

CD/js

BEFORE THE IOWA
BOARD OF PSYCHOLOGY EXAMINERS

IN THE MATTER OF	)	DIA NO. 92DPHPS-1
THE LICENSE TO PRACTICE AS	)	
A PSYCHOLOGIST OF:	)	NOTICE OF HEARING AND
	)	STATEMENT OF CHARGES
EUGENE GAURON,	)	
Lic. No. 262,	)	
Respondent.	)	

TO THE ABOVE-NAMED RESPONDENT:

Pursuant to Iowa Code § 17A.12 and 645 Iowa Administrative Code 240.206, and upon a probable cause determination by the Iowa Board of Psychology Examiners (the Board), you are hereby notified that a Statement of Charges has been filed and that a disciplinary hearing regarding those charges has been scheduled (Not Applicable -- simultaneous Informal Settlement.)
at ~~-----7-----7-19927-in-the-----~~
~~ef-the-Lucas-State-Office-Building7-Des-Moines7-Iowa7~~ At that time you may appear and defend. If you fail to appear and defend, Iowa Code § 17A.12(3) provides that the hearing may proceed and a decision rendered. You have the right to be represented by legal counsel at your own expense, present evidence on your behalf, and to examine and cross-examine witnesses. The authority for the hearing is Iowa Code §§ 258A.3 and 258A.6 and Board rules 240.201 through 240.212.

The hearing will concern whether or not disciplinary action should be taken concerning your license to practice as a psychologist based upon the following allegations:

1. Respondent was originally licensed to practice as a psychologist in the state of Iowa on January 13, 1978, and holds license number 262.

2. Respondent's license is current until June 30, 1992.

3. Respondent's current address as reported to the Board is 301 7th Ave. North, Iowa City, Iowa 52245.

4. Respondent, as a licensed psychologist and a mental health professional who, in the course of his practice, has the potential for counseling or treating a child, is subject to the requirement of Iowa Code § 232.69 (1991) of completing two hours of training relating to the identification and reporting of child abuse. Respondent has neglected to obtain this training.

5. Respondent has neglected to maintain adequate, current, and pertinent records on all patients, and has therefore failed to comply with the standards of practice for providers of psychological services.

6. By virtue of the allegations of paragraphs 4 and 5, Respondent has engaged in practices harmful or detrimental to the public, providing the Board with jurisdiction to take disciplinary action pursuant to Iowa Code §§ 147.55 and 258A.10. Further jurisdiction is provided by Board rule 645 Iowa Admin. Code § 240.212, including subrule 14(c)(3), which provides

In providing psychological services, psychologists avoid any action that will violate or diminish the legal and civil rights of clients or others who may be affected by their actions.

As practitioners, psychologists remain abreast of relevant federal, state, local, and agency regulations and professional standards of practice concerning the conduct of their practice.

* * *

You are also hereby notified that the hearing will be presided over by the Board which will be assisted by an administrative law judge from the Iowa Department of Inspections and Appeals.

Further, you are also hereby notified that the office of the Attorney General is responsible for representation of the public interest in these proceedings. Copies of all filings with the Board should be served on counsel at the following address: Lynette A. F. Donner, Assistant Attorney General, Hoover State Office Building, Des Moines, Iowa 50319. Ms. Donner's telephone number is: 515/281-8760.

Dated this 12th day of MAY, 1992.



Carl Davis, Ph.D.
Chairperson
Iowa Board of Psychology Examiners